

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

COMPLAINANTS' STATUS REPORT

Complainants herein submit this Status Report to make the Commission aware of changes in status regarding the above captioned matter. The Commission may recall that complainants' May 4, 2016 Notice of Filing (Document No. 29) on this docket contained written statements in Russian (with English translations) of complainants Igor Ovchinnikov, Irina Rzaeva, and Denis Nekipelov (copies of which are attached hereto as Appendix "A" for the Commission's convenience) wherein complainants request the opening of a criminal investigation. By way of example, complainant Ovchinnikov explains as follows:

I, Igor Ovchinnikov, was informed by Global Auto, which I purchased the car from, that the car disappeared from the warehouse of CarCont Ltd. The car was paid for by me, that can be confirmed by a copy of the payment document, a copy of the documents for the car, and a confirmation e-mail, that the car has been delivered to Finland (GMC Acadia 2010 SLT-2, VTN: 1GKLVNED6AJ138200) in Finland.

I am asking to investigate the situation. Clarify the involvement of all the companies associated with the car purchase and transportation, namely: Global Auto (seller), Empire United (shipper), CarCont Ltd. (warehouse in Finland), [a]nd the following involved: Sergey Kapustin, Michael Goloverya (whose signature is on the invoice, which I paid for the purchased car), Michael Hitrinov (owner of companies Empire United, CarCont Ltd.), Empire United / Carcont employees: Vyacheslav Gaidash, Daria Osipova, Denis Shavrikov.

I'm ready to cooperate in any possible way, ready to provide all available information.

Please, report any information that appears to the following e-mail: oiur@rambler.ru

Attached hereto as Appendix “B” is a true and accurate copy of a Decision on a Pre-Trial Investigation of the Salpausselka Prosecutor’s Office in Finland (in original Finnish language) together with a certified translation of same, which was provided to the undersigned (collectively, the “Decision”). Said Decision identifies respondent, Hitrinov (who, as explained below “...acted on behalf of Oy Carcont Ltd. in Finland...”) as the suspect and that the suspected offence was Aggravated Fraud under the Finnish Penal Code. The Decision also notes that it was complainant Ovchinnikov that had filed the investigation request regarding the car sale between him and Global Auto Inc., and that the car was shipped to Finland “...where it was to be delivered to the possession of the injured party...” and that “Oy Carcont Ltd. in Musalo, Kotka was the bonded warehouse”.¹

Notably, the Decision further explains as follows:

OY Carcont Ltd. has told the injured party that they have the original registration papers but that the US freight carrier, Empire United Lines Ltd. has not given the bonded warehousing company, Oy Carcont Ltd., permission to convey the car further as Global Auto Inc. had not paid its debt to the freight carrier. Oy Carcont Ltd. Is a bonded warehouse and it does not have the right to decide on the property in warehousing but it conveys property in accordance with the instructions of the sender.

¹ In order to avoid the possibility of poisoning the Commission’s consideration of the information set forth herein, based on the Decision as “speculation”, we note up front that while the Decision may make general conclusions, we respectfully submit that it is very reasonable to assume and understand that these conclusions are applicable to all of the subject shipments at issue herein.

While the Salpausselka Prosecutor's Office (regrettably) decided to discontinue its pre-trial investigation², the Decision nevertheless sheds light on various issues relevant for the Commission and its jurisdiction over complainants' claims herein, and may be useful aid for the Commission's analysis in any forthcoming Final Decision on complainants' pending Exceptions.

As to the issue of what capacity respondent Empire United Lines Co. Inc. ("EUL") had acted with regard to this shipment, the Decision identifies EUL as the "US freight carrier" rather than owner or 'partial owner' of the cargo, as maintained by respondents throughout these proceedings.

As to the question of whether or not EUL had any knowledge of complainant Ovchinnikov (and others) having been designated as "consignee" for the shipment (where respondents have argued in the negative, and in particular have stated that no documents exist proving that respondents had any knowledge of the complainants' designation as "consignee"), the Decision indicates otherwise. Specifically, while respondents argue here that they were not obligated to release the cars to the complainants who were allegedly strangers to the shipping transaction, the Decision explains, *inter alia*, that: "OY Carcont Ltd. has told the injured **party that they have the original registration papers but that the US freight carrier, Empire United Lines Ltd.** has not given the bonded warehousing company, Oy Carcont Ltd., permission to convey the car further **as Global Auto Inc. had not paid its debt to the freight carrier**" - - the issue here was not that complainants were not the consignee of the shipments, or whether or not the "contract of carriage" required Empire to deliver the car to Complainants but rather as stated above, while Oy Carcont Ltd. had "the original registration papers", the cars were not released

² We note here that page "3" of the Decision explains that "[t]his decision does not contain a statement to the effect whether the suspect is guilty of the suspected offence referred to in the decision"; that "[t]his decision does not relieve the suspect of any liability for damages"; and that "[t]he prosecutor shall decide on the continuance of the pre-trial investigation if there is a justifiable reason for this due to new factors which have become evident in the matter". We also note here that page "2" indicates that it was distributed to the "Suspect" to wit: Hitrinov, the Injured Parties and the Police, and that respondents were in possession of this document and failed to disclose it in this matter.

due to an alleged debt, and more specifically, that the US freight carrier, Empire United Lines Ltd., has not given the bonded warehousing company, Oy Carcont Ltd., permission to convey the car **because *Global Auto Inc. had not paid its debt to the freight carrier.***

On the related issue of who was the ultimate consignee for the shipment of the subject cars, while respondents have argued to the Commission that Carcont was the ultimate consignee for the shipment of the cars to Kotka, Finland, the Decision states that “Oy Carcont Ltd. in Musalo, Kotka was the bonded warehouse”³ and that “...it does not have the right to decide on the property in warehousing but it conveys property in accordance with the instructions of the sender...” - - that sender being respondents herein. For this reason, Carcont Ltd., which was merely a bonded warehouse (without power to convey property without permission of the sender) could not possibly be an ultimate consignee for the shipment of the subject cars.

A few additional and notable points are raised in the Decision and are presented for the Commission’s consideration as follows:

- On page “1” of the Decision, the investigating officer, Detective Chief Inspector Juha Junkkari stated that: “[t]he injured party ordered over the Internet, a GMC Acadia car he had found in the website www.globalautousa.com” and that he “...paid the sales price to an American bank account and the car was shipped to Finland ***where it was to be delivered to the possession of the injured party***”.
- Detective Chief Inspector Juha Junkkari, notes on page “2” of the Decision that: Hitrinov “...acted on behalf of Oy Carcont Ltd. in Finland...”.

³ For purposes of clarity, the port of Musalo is a port in Kotka, Finland and Musalo not a separate town or city. This is the same port where subject cargo was delivered to as set forth in the Complaint. See, <https://www.haminakotka.com/about-port/harbours/mussalo>

As to the Presiding Officer's discussion regarding the nature of the relationship between complainants, Kapustin and the respondents, beginning on page "9" of the ID (Document 152) it would appear that the Decision by Detective Chief Inspector Juha Junkkari has a statement of facts that conflicts materially with that of the Presiding Officer⁴ - - in the Decision there is no discussion about loans or other business arrangements between Kapustin and Empire which would support respondents' version of the facts, to wit: 1) that respondents and Kapustin were allegedly business partners and had an arrangement wherein respondents were allegedly shipping cars in which they had an ownership interest or were giving loans to Kapustin; 2) that the cars allegedly were to be released to (*and only to*), Global Cargo Oy; 3) that there was any issue as to whether or not it was understood that Ovchinnikov was not the consignee of the shipment; and 4) that any 'contract of carriage' did not require Empire to deliver the car to Complainants - - but rather as stated above per the Decision, while Oy Carcont Ltd. had "the original registration papers", the cars were not released due to an alleged debt, and more specifically, that the US freight carrier, Empire United Lines Ltd., has not given the bonded warehousing company, Oy Carcont Ltd., permission to convey the car because ***Global Auto Inc. had not paid its debt to the freight carrier.***

⁴ Paragraph "6" of the Criminal Complaint against Kapustin, annexed as Appendix "1" to Complainants' Status Report of January 15, 2017 (Document 142 on this docket) explains that: "Victim 2 has attested that... in December 2012, KAPUSTIN told Victim 2 that the car was in Kotka, Finland but couldn't be released, and Victim 2 was told to call CarCont, Ltd in Kotka for an explanation...CarCont, Ltd. refused to release the car, without significant additional charges...". In the matter at bar, and per the Decision, it is now understood that Hitrinov "...acted on behalf of Oy Carcont Ltd. in Finland..." and with regard to CarCont, that "...it does not have the right to decide on the property in warehousing but it conveys property in accordance with the instructions of the sender...". Put simply, Detective Chief Inspector Juha Junkkari explained that Carcont was a bonded warehouse. If CarCont refused to release the cars on the sole basis that they could not be released without complainants' payment of "...significant additional charges...", it would appear that the U.S. Attorney's Office had a statement of facts that conflicts materially with that of the findings of fact of the Presiding Officer in the Initial Decision, wherein the Presiding Officer determined, inter alia that: a) the cars allegedly were to be released to (and only to), Global Cargo Oy and not to ultimate consignee, and b) EUL allegedly did not know who was the ultimate consignee for each car. The description of the facts as set forth in Kapustin's Criminal Complaint also conflicts materially with that of the conclusion of the Presiding Officer in the Initial Decision. In the Criminal Complaint, per the testimony of Victim 2, Kapustin had confirmed that his contract carriage required Empire to deliver the car to Victim 2. The Presiding Officer concluded in the ID that "...Complainants have not identified evidence that would support a finding that shipper Kapustin intended that they be identified as consignees or that Empire, operating as an NVOCC, agreed to deliver the cars to Complainants."

While respondents never acted on Global Auto Inc.'s demand to release the cars to their consignees, the demand itself nevertheless indicates that respondents were aware of the existence of the consignees. An earlier demand from Kapustin that Hitrinov release the cars is already on the Commission's docket (to wit: Document 101) in the appendix to Complainants' Motion to Supplement the Record. Paragraph "20" of the Affidavit of Maria Temkin, Esq. quotes a passage from an email between Kapustin and Hitrinov's counsel, Jon Werner, Esq. wherein Kapustin states that "...Hitrinov and Mitnik...stole peoples' property..." and asking "If Hitrinov states that I owe him, then he should sue me, why did he touch the clients' cars...".

Accordingly, if CarCont refused to release the cars solely due to an alleged unpaid debt⁵, the statements of Detective Chief Inspector Juha Junkkari in the Decision are irreconcilable with the current explanation by respondents and their counsel in this proceeding, to wit: that the cars could not be released because: a) respondents could release a car only to Global Cargo OY in Finland, and not to ultimate consignee; b) EUL allegedly did not know the ultimate consignee for each car; c) the contract of carriage allegedly required Empire to deliver the car to Complainants; and d) Kapustin allegedly did not provide to EUL the names of ultimate consignees, while Oy Carcont Ltd. had "the original registration papers" and the US freight carrier, Empire United Lines Ltd., has not given the bonded warehousing company, Oy Carcont Ltd., permission to convey the car "as Global Auto Inc. had not paid its debt to the freight carrier".

In closing, and as always, complainants thank the Commission for its many continuing courtesies and considerations in this case.

Dated: December 9, 2019
New York, New York

Respectfully Submitted,

/s/ Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.

⁵ As stated alternatively herein, CarCont, Ltd. refused to release the car, without significant additional charges...".

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the COMPLAINANTS' STATUS REPORT and APPENDIX upon Respondents' Counsel at the following address:

Nixon Peabody LLP
Attn: Eric C. Jeffrey, Esq.
799 9th Street NW, Suite 500
Washington, DC 20001-4501

by first class mail, postage prepaid, and via email (ejeffrey@nixonpeabody.com).

/s Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.
Mail Drop: P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

Dated: December 9, 2019 in New York, New York.

APPENDIX “A”

Я, Овчинников Игорь Юрьевич, был информирован компанией Global Auto, у которой приобрел автомобиль, о том, что автомобиль бесследно исчез со склада временного хранения CarCont Ltd. Автомобиль был оплачен мной, что может быть подтверждено копией платежного документа, копией документов на автомобиль, и подтверждающим письмом на электронной почте, о поступлении автомобиля (GMC Acadia 2010 SLT-2, VIN: 1GKLVNED6AJ138200) в Финляндию.

В связи с чем, требую разобраться в данной ситуации. Выяснить причастность к ней всех компаний связанных с покупкой автомобиля и его транспортировки, а именно: Global Auto (продавец), Empire United (транспортировка авто), CarCont Ltd. (склад хранения автомобиля в Финляндии. Так же непосредственные лица: Сергей Капустин, Майкл Головеря (чья подпись стоит на инвойсе, который оплачен мной для покупки авто), Михаил Хитринов (владелец компаний Empire United, CarCont Ltd.), работники компаний Empire United/Carcone: Вячеслав Гайдаш, Дарья Осипова, Денис Шавриков.

Я готов к полному сотрудничеству, готов предоставить всю имеющуюся информацию.

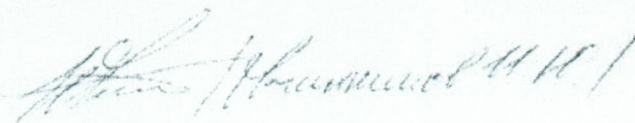
Просьба, сообщать о любой появившейся информации мне на e-mail: oiur@rambler.ru

I, Igor Ovchinnikov, was informed by Global Auto, which I purchased the car from, that the car disappeared from the warehouse of CarCont Ltd. The car was paid for by me, that can be confirmed by a copy of the payment document, a copy of the documents for the car, and a confirmation e-mail, that the car has been delivered to Finland (GMC Acadia 2010 SLT-2, VIN: 1GKLVNED6AJ138200) in Finland.

I am asking to investigate the situation. Clarify the involvement of all the companies associated with the car purchase and transportation, namely: Global Auto (seller), Empire United (shipper), CarCont Ltd. (warehouse in Finland). And the following involved: Sergey Kapustin, Michael Goloverya (whose signature is on the invoice, which I paid for the purchased car), Michael Hitrinov (owner of companies Empire United, CarCont Ltd.), Empire United / Carcont employees: Vyacheslav Gaidash, Daria Osipova, Denis Shavrikov.

I'm ready to cooperate in any possible way, ready to provide all available information.

Please, report any information that appears to the following e-mail: oiur@rambler.ru

05.03.2015г.  Овчинников И.Ю.

DOCUMENT 6

I, RZAEVA IRINA

Was informed by Global Auto, which I purchased the car from, that the car disappeared from the warehouse of CarCont Ltd. The car was paid for by me, that can be confirmed by a copy of the payment document, a copy of the documents for the car, and a confirmation e-mail, that the car has been delivered (year **2011**, Make **JEEP**, Model **COMPASS**, VIN **1J4NF5FB7BD282296**) to Finland.

I am asking to investigate the situation. Clarify the involvement of all the companies associated with the car purchase and transportation, namely: Global Auto (seller), Empire United (shipper), CarCont Ltd. (warehouse in Finland). And the following involved: Sergey Kapustin (whose signature is on the invoice, which I paid for the purchased car), Michael Hitrinov (owner of companies Empire United, CarCont Ltd.), Empire United / Carcont employees: Vyacheslav Gaidash, Daria Osipova, Denis Shavrikov.

I'm ready to cooperate in any possible way, ready to provide all available information.

Please, report any information that appears to the following e-mail: Irina@specprofi.ru

date :February 4, 2013

signature:



THIS has been sent to the addressee

igor.hitruhin@nordlex.fi

harlangesq@comcast.net

Tbackman@fmc.gov

fcibelli@mscgva.ch Ferdinando Cibelli

skendell@mscgva.ch Simon Kendell

I, RZAEVA IRINA

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(year **2011**, Make **JEEP**, Model **COMPASS**, VIN **1J4NF5FB7BD282296**) to Finland.

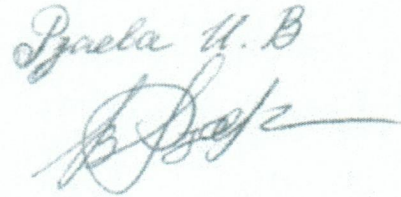
I am asking to investigate the situation. Clarify the involvement of all the companies associated with the car purchase and transportation, namely: Global Auto (seller), Empire United (shipper), CarCont Ltd. (warehouse in Finland). And the following involved: Sergey Kapustin (whose signature is on the invoice, which I paid for the purchased car), Michael Hitrinov (owner of companies Empire United, CarCont Ltd.), Empire United / Carcont employees: Vyacheslav Gaidash, Daria Osipova, Denis Shavrikov.

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Please, report any information that appears to the following e-mail: Irina@specprofi.ru

date :February 4, 2013

signature:

A handwritten signature in blue ink, appearing to read 'Irina Rzaeva', with a long horizontal flourish extending to the right.

я. Некипелов Денис Николаевич

Был информирован компанией Global Auto, у которой приобрел автомобиль, о том, что автомобиль бесследно исчез со склада временного хранения CarCont Ltd. Автомобиль был оплачен мной, что может быть подтверждено копией платежного документа, копией документов на автомобиль, и подтверждающим письмом на электронной почте, о поступлении автомобиля

(Марка Mercedes-Benz Модель C300 4Matic VIN WDDGF81X49R073295) в Финляндию.

В связи с чем требую разобраться в данной ситуации. Выяснить причастность к ней всех компаний связанных с покупкой автомобиля и его транспортировкой, а именно: Global Auto (продавец), Empire United (транспортировка авто), CarCont Ltd. (склад хранения автомобиля в Финляндии). Так же непосредственные лица: Сергей Капустин (чья подпись стоит на инвойсе, который оплачен мной для покупки авто), Михаил Хитринов (владелец компаний Empire United, CarCont Ltd.), работники компаний Empire United/Carcone: Вячеслав Гайдаш, Дарья Осипова, Денис Шавриков

Я готов к полному сотрудничеству, готов предоставить всю имеющуюся информацию.

Просьба, сообщать о любой появившейся информации мне на e-mail: Nekipelov@inbox.ru, и Zvonareva-79@mail.ru

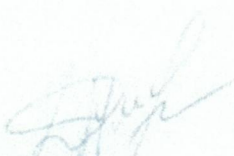
I. Nekipelov Denis

Was informed by Global Auto, which I purchased the car from, that the car disappeared from the warehouse of CarCont Ltd. The car was paid for by me, that can be confirmed by a copy of the payment document, a copy of the documents for the car, and a confirmation e-mail, that the car has been delivered to Finland (Make Mercedes-Benz, Model C300 4Matic, VIN WDDGF81X49R073295) in Finland.

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I'm ready to cooperate in any possible way, ready to provide all available information.

Please, report any information that appears to the following e-mail: Nekipelov@inbox.ru, и Zvonareva-79@mail.ru



Подпись (Ф.И.О.)

Некипелов Денис Николаевич

Mr. Nekipelov Denis

APPENDIX “B”

SALPAUSSELÄN SYYTTÄJÄNVIRASTO**PÄÄTÖS**

15/443

esitutinnan rajoittamisesta

Asianro

E 15/1369

Vuorikatu 1
45101 KOUVOLA

26.2.2015

Puhelin 029 562 3415 Fax 029 562 3414

Rikoksesta epäiltyHITRINOV MICHAEL
02.07.1962**Asianomistajat**

OCHINNIKOV IGOR

Epäilty rikoksetTÖRKEÄ PETOS
1.1.2013 ULKOMAAT
8150/R/0005185/13
Rikoslaki 36 luku 2 § 1**Syyttäjän päätös**

Päätän, että esitutkinta lopetetaan.

Perustelut

Tutkinnanjohtaja rikoskomisario Juha Junkkari on 25.02.2015 esittänyt, että esitutkinta asiassa lopetetaan.

Venäjän kansalainen Igor Ochinnikov on tehnyt tutkintapyyntöön liittyen hänen Yhdysvaltalaisen Global Auto Inc:n kanssa tekemäänsä autokauppaan. Global Auto Inc:n osoite on ollut New Jersey, Elisabeth ja sen toimitusjohtajana on ollut Yhdysvalloissa asuva Sergey Kapustin. Yhtiön nimi on myöhemmin muuttunut G Auto Sales Inc:ksi ja osoitteeksi on vaihtunut New Jersey, Delran.

Asianomistaja on tilannut internetistä osoitteesta www.globalautousa.com löytämänsä GMC Acadia -merkkisen henkilöauton. Hän on maksanut kauppahinnan yhdysvaltalaiselle pankkitilille ja auto on lähetetty Suomeen, mistä sen piti olla haettavissa asianomistajan haltuun. Tullivarastona on toiminut Oy CarCont Ltd. Kotkan Mussalosta.

Oy Carcont Ltd:stä on kerrottu asianomistajalle, että heillä on alkuperäinen rekisteriote, mutta yhdysvaltalainen rahdinkuljettaja Empire United Lines Ltd. ei ole antanut tullivarastonpitäjälle, Oy Carcont Ltd:lle, lupaa auton edelleen luovuttamiseen, koska Global Auto Inc ei ole maksanut velkaansa rahdinkuljettajalle. Oy Carcont Ltd. on tullivarasto, eikä sillä ole mitään oikeutta päättää varastossa olevasta omaisuudesta, vaan se luovuttaa omaisuuden lähettäjän ohjeiden mukaan.

Asianomistaja ei ole saanut autoa, eikä autosta maksamaansa summaa takaisin. Lisäksi asianomistajalle on aiheutunut muita kuluja asian hoitamisen vuoksi.



Esitutkinnassa saadun selvityksen perusteella Suomessa toimineen tullivaraston edustajien osalta ei voida näyttää toteen sitä, että he olisivat olleet tietoisia, ettei kyseistä autoa luovuteta ostajalle. Mikäli esitutkinta suoritettaisiin loppuun ja asia saatettaisiin syyteharkintaan, tulisin tekemään asiassa syyttämättäjättämispäätöksen Suomessa Oy Carcont Ltd:n puolesta toimineen Hitrinovin osalta sillä perusteella, ettei esitutkinnassa ole syytteen noston tueksi ilmennyt riittävää näyttöä rikoksesta eikä Hitrinovin osallisuudesta mahdolliseen erehdyttämistekoon. Koska myöskään tärkeä yleinen tai yksityinen etu ei vaadi esitutinnan jatkamista, esitutkinta lopetetaan.

Lainkohdat

Esitutkintalaki 3 luku 10 § 2 mom.

Allekirjoitus

Kihlakunnansyyttäjä



Minna Riski

Jakelu

Rikoksesta epäilty
Asianomistajat
Poliisi



...issa saadun selvityksen perusteella Suomessa toimineen tullivaroaston edustajien osalta ei voida näyttää toteen sitä, että he olisivat suorittaneet tietoisia, ettei kyseistä autoa luovuteta ostajalle. Mikäli esitutkinta tekemään asiassa syyttämättä jättämissä päätöksissä syyteharkintaa, tulisin esitutkinnassa ole syyteen noston tueksi ilmennyt riittävää näyttöä rikoksesta eikä Hiltinovin osalta sillä perusteella, ettei erehdyttämistekoon. Koska myöskään tärkeä yleinen tai yksityinen etu ei vaadi esitutkinnan jatkamista, esitutkinta lopetetaan.

Lainkohdat

Esitutkintalaki 3 luku 10 § 2 mom.

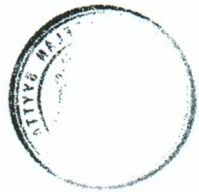
Allekirjoitus

Kihlakunnansyyttäjä


Minna Riski

Jakelu

Rikoksesta epäilty
Asianomistajat
Poliisi



APOSTILLE

(Convention de La Haye du 5 octobre 1961)

1. Maa: Suomi
- Tämän yleisen asiakirjan:
2. on allekirjoittanut: Minna Riski
3. toimiessaan: kihlakunnansyyttäjänä
4. Siinä oleva sinetti/leima on Salpausselän syyttäjäviroston
5. Kotkassa Todistetaan
6. 16 päivänä lokakuuta 2015

7. Ari Torkkel, julkinen notaari, Kaakkois-Suomen maistraatin päällikkö

8. No 630 / 2015

9. Sinetti/leima:



10. Allekirjoitus:


Ari Torkkel

Julkinen notaari
Kaakkois-Suomen maistraatin päällikkö
Notarius Publicus

maksu 13 €

ASIANOSAISILLE TIEDOKSI

1. Tämä päätös ei sisällä kannanottoa siihen, onko rikoksesta epäilty syylistynyt päätöksessä mainittuun epäiltyyn rikokseen.
2. Tämä päätös ei vapauta rikoksesta epäiltyä mahdollisesta vahingonkorvausvelvollisuudesta.
3. Asianomistajalla on tämän päätöksen tekemisen jälkeen oikeus käyttää omaa syyteoikeuttaan.
4. Syyttäjä päättää esitutkinnan jatkamisesta, jos siihen asiassa ilmenneiden uusien seikkojen vuoksi on perusteltua syytä.

Esitutkintalaki 3 luku 10 § Esitutkinnan rajoittaminen

Syyttäjä voi tutkinnanjohtajan esityksestä päättää, ettei esitutkintaa toimiteta tai että se lopetetaan, jos syyttäjä oikeudenkäynnistä rikosasioissa annetun lain 1 luvun 7 tai 8 §:n taikka muun vastaavan lainkohdan nojalla tulisi jättämään syytteen nostamatta eikä tärkeä yleinen tai yksityinen etu vaadi syytteen nostamista.

Syyttäjä voi tutkinnanjohtajan esityksestä myös päättää, että esitutkinta lopetetaan, jos tutkinnan jatkamisesta aiheutuvat kustannukset olisivat selvässä epäsuhteessa tutkittavana olevan asian laatuun ja siitä mahdollisesti odotettavaan seuraamukseen tai jos jo suoritettujen esitutkintatoimenpiteiden perusteella on varsin todennäköistä, että syyttäjä tulisi jättämään syytteen nostamatta muulla kuin 1 momentissa mainitulla perusteella. Esitutkinnan lopettaminen edellyttää lisäksi, ettei tärkeä yleinen tai yksityinen etu vaadi esitutkinnan jatkamista.

Esitutkinta on 1 ja 2 momentissa tarkoitetuissa tapauksissa aloitettava uudelleen, jos siihen asiassa ilmenneiden uusien seikkojen vuoksi on perusteltua syytä.



1

SALPAUSSELKÄ PROSECUTOR'S OFFICE

DECISION on
restriction of the pre-trial investigation

15/443

Vuorikatu 1
45101 KOUVOLA
Tel. +358 29 562 341526 February 2015
Matter No.
E 15/1369

Fax +358 29 562 3414

Suspect

HITRINOV MICHAEL
2 July 1962

Injured parties

OCHINNIKOV IGOR

Suspected offences

AGGRAVATED FRAUD
1 January 2013
8150/R/0005185/13
ABROAD
Penal Code, Chapter 36, section 2 (1)Decision of the
prosecutor

I have decided to discontinue the pre-trial investigation.

Grounds

The officer in charge of the investigation, Detective Chief Inspector Juha Junkkari, has on 25 February 2015 proposed that the pre-trial investigation in the matter be discontinued.

Russian citizen Igor Ochinnikov has filed an investigation request regarding a car sale between him and an American Global Auto Inc. The address of Global Auto Inc. has been Elisabeth, New Jersey, and its Managing Director has been Sergey Kapustin, who lives in the United States. The name of the company has later been changed into G Auto Sales Inc. and its address to Delran, New Jersey.

The injured party ordered over the Internet a GMC Acadia car he had found in the website www.globalautousa.com. He paid the sales price to an American bank account and the car was shipped to Finland where it was to be delivered to the possession of the injured party. Oy CarCont Ltd. in Mussalo, Kotka was the bonded warehouse.

Oy Carcont Ltd. has told the injured party that they have the original registration papers but that the US freight carrier, Empire United Lines Ltd., has not given the bonded warehousing company, Oy Carcont Ltd, permission to convey the car further as Global Auto Inc. had not paid its debt to the freight carrier. Oy Carcont Ltd. is a bonded warehouse and it does not have the right to decide on the property in warehousing but it conveys property in accordance with the instructions of the sender.

The injured party has not received the car nor has he got back the money paid for the car. In addition, the injured party has incurred other costs from attending to the matter.



In accordance with the information obtained during pre-trial investigation, it cannot be proven that the representatives of the bonded warehouse operating in Finland had known that the said car was not to be delivered to the buyer. If the pre-trial investigation were to be continued and the matter be brought to evaluation of charges, I would make the decision not to prosecute in the matter with regard to Hitrinov, who acted on behalf of Oy Carcont Ltd. in Finland, on grounds that no sufficient proof of an offence has been presented in the pre-trial investigation to support the bringing of a charge nor of the involvement of Hitrinov in a possible act of deceit.

As there are no public or private interests demanding continuance of the pre-trial investigation, the pre-trial investigation shall be discontinued.

Criminal Investigation Act, Chapter 3, section 10 (2)

Applicable law

Minna Riski /s/
Minna Riski

District Prosecutor

Signature

Suspect
Injured parties
The Police

Distribution

I hereby certify that the above is a true and correct original document in Finnish.
Kouvola, Finland, 14 October 2014

Minna Riski
Riiva Alanne-Lehto
Authorised translator Finnish-English



NOTE TO THE PARTIES

1. This decision does not contain a statement to the effect whether the suspect is guilty of the suspected offence referred to in the decision.
2. This decision does not relieve the suspect of any liability for damages.
3. The injured party shall, after this decision, have the right to exercise his right to institute criminal proceedings.
4. The prosecutor shall decide on the continuance of the pre-trial investigation if there is a justifiable reason for this due to new factors which have become evident in the matter.

Criminal Investigation Act, Chapter 3, Section 10 – Restriction of a criminal investigation

The public prosecutor may, on the request of the head investigator, decide that no criminal investigation is to be conducted or that the criminal investigation shall be discontinued, if he or she, on the basis of Chapter 1, section 7 or 8 of the Code of Criminal Procedure or on the basis of another corresponding provision, should waive prosecution and if there is no important public or private interest that would require the bringing of charges.

The public prosecutor may, on the request of the lead investigator, also decide that the criminal investigation shall be discontinued if the expenses of continuing the investigation would be clearly disproportionate to the nature of the matter under investigation and the possible sanction or if on the basis of the criminal investigation measures already performed it is very probable that the public prosecutor should waive prosecution on grounds other than those referred to in subsection 1. Discontinuation of the criminal investigation also requires that there is no important public or private interest that would require continuation of the investigation.

In the cases referred to in subsections 1 and 2 the criminal investigation shall be recommenced if there is justified reason for this due to new factors which have become evident in the matter.

[Stamp of the Salpausselkä Prosecutor's Office]

I hereby certify that the above is a true translation of the original document in Finnish.
Kouvola, Finland, 14 October 2015

Ritva Alanne-Lehto
Ritva Alanne-Lehto
Authorised translator Finnish-English/Finnish



APOSTILLE

(Convention de La Haye du 5 octobre 1961)

1. Maa:

Suomi

Tämän yleisen asiakirjan:

2. on allekirjoittanut:

Ritva Alanne-Lehto

3. toimiessaan:

auktorisoituna kääntäjänä

4. Siinä oleva sinetti/leima on

Auktorisoidun kääntäjän

Todistetaan

5. Kotkassa

6. 16 päivänä lokakuuta 2015

7. Ari Torkkel, julkinen notaari, Kaakkois-Suomen maistraatin päällikkö

8. No 631 / 2015

9. Sinetti/leima:



10. Allekirjoitus:



Julkinen notaari
Kaakkois-Suomen maistraatin päällikkö
Notarius Publicus

maksu 13 €